Retrospective amendment of notification issued under sub-section (1) of section 25 of Customs Act read with section 124 of Finance Act.

105. (1) Subject to the provisions of sub-section (2), the notification of the Government of India in the Ministry of Finance (Department of Revenue) number G.S.R. 356(E), dated the 10th May, 2023, issued by the Central Government, on being satisfied that it is necessary in the public interest so to do, under sub-section (1) of section 25 of the Customs Act read with section 124 of the Finance Act, 2021 (13 of 2021) (hereinafter referred to as the Finance Act), shall be deemed to have, and always to have, for all purposes, come into force with effect from the 1st day of April, 2023, and remain in force during the period from the 1st day of April, 2023 and ending with the 30th day of June, 2023 (both days inclusive).

(2) The notification of the Government of India in the Ministry of Finance (Department of Revenue) number G.S.R. 356(E), dated the 10th May, 2023, issued by the Central Government, on being satisfied that it is necessary in the public interest so to do, under sub-section (1) of section 25 of the Customs Act read with section 124 of the Finance Act shall stand amended in the manner specified in column (2) of the Second Schedule and shall be deemed to have been amended retrospectively on and from and up to the corresponding date specified in column (3) of that Schedule against the notification number to be amended as specified in column (1) of that Schedule.

(3) For the purposes of sub-section (2), the Central Government shall have and shall be deemed to have the power to amend the notification referred to in the said sub-section with retrospective effect as if the Central Government had the power to amend the said notification under sub-section (1) of section 25 of the Customs Act, read with section 124 of the Finance Act at all material times.

(4) Refund shall be made of the whole of duty and cess, which has been collected, but which would not have been so collected, had the notification referred to in sub-section (1) been in force in the manner and to the extent specified in sub-sections (1) and (2), in accordance with the provisions of sub-section (2) of section 27 of the Customs Act:

Provided that the person claiming the refund of such duty and cess makes an application in this behalf to the jurisdictional Assistant Commissioner of Customs or Deputy Commissioner of Customs, as the case may be, on or before the 31st day of March, 2025.